VENUE HIRE AGREEMENT: TERMS & CONDITIONS

PARTIES:

1. UNSW Founders (ABN 57 195 873 179) of Michael Crouch Innovation Centre, UNSW Sydney, Sydney, NSW 2052
2. “The Hirer”
(together, the "Parties").

SECTION 1. PAYMENT & DEPOSIT SCHEDULE

1.1. Deposit: A deposit payment of 50% of the total hire charge is required upon booking to confirm and secure the space reservation.

1.2. Balance Payment: The remaining 50% balance must be paid no later than 48 hours prior to the event commencement time upon receipt of a tax invoice.

1.3. Failure to Pay: Failure to settle the deposit or final balance within the required timeframe grants UNSW Founders the right to cancel the booking.

1.4. Cleaning Surcharges: If the Hired Areas are left disorderly or dirty after the booking window, UNSW Founders reserves the right to recover full cleaning costs at a minimum rate of $200 + GST.

1.5. Casual Staffing Rates: Event support staff are billed at $50 per hour. The minimum is 3 hours, or 4 hours on a weekend.

1.6. Staff Overtime: Overtime beyond 8 hours is charged at 1.5x the base rate ($75/hr). Shifts exceeding 10 hours are charged at double time ($100/hr).

SECTION 2. CANCELLATION, REFUNDS & VENUE VARIATIONS

2.1. Cancellation Window & Charges (By Hirer):

2.1.1. 6+ Working Days Notice: Cancellations received in writing at least 6 working days prior to the event will receive a full refund of all monies paid.

2.1.2. 3 to 5 Working Days Notice: Cancellations received between 3 and 5 working days prior will forfeit 50% of the total booking fee.

2.1.3. Less than 2 Working Days Notice: Cancellations received less than 2 working days prior will forfeit 100% of the total booking fee.

2.2. Venue Scheduling Conflicts & Emergency Variations (By Venue):

2.2.1. UNSW Founders reserves the right to vary, reschedule, or cancel a booking due to emergency facility maintenance, safety concerns, unexpected double-booking, or urgent internal program priorities.

2.2.2. In such instances, UNSW Founders will provide as much advance notice as reasonably practicable and issue a full (100%) refund of all hire fees paid for that booking.

SECTION 3. HIRER RESPONSIBILITIES

3.1. Authorised Purpose: The Hirer may use the venue only for the specific purpose outlined in the booking agreement and must abide by all venue directives.

3.2. Supervision: The Hirer must maintain active physical supervision throughout the booking window. Guests and facilities must not be left unattended.

3.3. Damages: Any damage to the venue, furniture, or AV equipment caused during the hire period is the sole financial responsibility of the Hirer (charged at full replacement cost).

3.4. Entry & Emergency Compliance: UNSW Founders staff reserve the right to refuse entry to or remove any person from the premises on reasonable safety grounds. Hirers must comply with all emergency personnel instructions and emergency evacuation procedures.

SECTION 4. EQUIPMENT & VENUE USE

4.1. Equipment Care: The Hirer accepts full responsibility for the safe operation of all hired items and must restore equipment to its original condition upon conclusion (fair wear and tear excepted).

4.2. Specialised Equipment Notification: The Hirer must notify UNSW Founders prior to bringing in high-power electrical gear, staging, or specialised heavy equipment so technical staff can review safety compliance. Standard laptops, handheld cameras, personal presentation devices, and small portable items do not require prior notice.

4.3. Prohibited Materials: Open flames, explosive materials, hazardous chemicals, fuels, and pyrotechnics are strictly prohibited anywhere within or near the venue.

4.4. Asset Egress: All external props, catering supplies, and personal items must be removed immediately at the conclusion of the booking period.

SECTION 5. CATERING & ALCOHOL

5.1. Self-Service Catering: Hirers have full responsibility for organising food and beverages. All food and waste must be cleared away before departure. UNSW Founders reserves the right to reject third-party catering services deemed unsafe or damaging.

5.2. Responsible Service of Alcohol (RSA): If alcohol is being served, anyone supervising or serving it must hold a valid NSW RSA competency card. A photocopy of

the card must be submitted to venue management before the event. Alcohol may be served by a dedicated bartender, who pours and hands out drinks, or from a gallery / self-service station, where drinks are set out and an RSA cardholder must still actively oversee the station. If the Hirer or their catering team do not hold an RSA card, or prefer not to manage service compliance, they may hire an RSA-certified UNSW Founders casual staff member at $50 per hour. The minimum is 3 hours, or 4 hours on a weekend. Hired staff oversee a gallery / self-service station. The Hirer remains responsible for providing all alcohol, serviceware, and ice, and for ensuring guests are of legal drinking age. Food and non-alcoholic drinks must be freely available whenever alcohol is served. Alcohol service will be refused or suspended if RSA documentation is missing, if minors are present without explicit prior safety arrangements, or if unsafe behaviour occurs.

SECTION 6. TICKETING, REGISTRATION & EVENT REVENUE

6.1 Hirer Ticketing Responsibility: Unless otherwise agreed in writing, the Hirer manages their own event registration or ticketing via their preferred external platform (e.g., Humanitix, Luma, Eventbrite, or self-hosted forms) and holds sole legal and financial responsibility for guest management and attendee ticket refunds.

6.2 Discretionary Venue & Platform Ticketing Option: UNSW Founders reserves the right, at its absolute discretion or by mutual written agreement, to manage, execute, or require event ticketing and attendee check-in through UNSW Founders' nominated ticketing provider or official venue platform. Where UNSW Founders manages or hosts event ticketing:

6.2.1 Multi-Party Fee & Revenue Distribution: For paid or ticketed events managed by UNSW Founders, total ticket proceeds collected will be distributed to cover:

(a) Applicable platform software or transaction processing fees;

(b) A UNSW Founders venue consignment fee of $2.50 (inc. GST) per ticket sold or distributed for paid tickets priced over $25.00;

(c) Any outstanding venue hire, staff, or operational fees owed to UNSW Founders under this Agreement;

(d) Net remaining ticket revenue payable to the Hirer following event conclusion.

6.2.2 Event Cancellation Refunds: In the event of event postponement or cancellation, UNSW Founders reserves the right to deduct unrecoverable transaction processing fees and refund attendees directly from collected proceeds.

SECTION 7. PROMOTION & BRAND PROTECTION

7.1 Venue Attribution: The Hirer may use the venue name ("Michael Crouch Innovation Centre") to indicate the physical event location.

7.2 Brand Review Right: UNSW Founders reserves the right to review any promotional material bearing its name, logo, or venue branding, and may request immediate edits, correction, or withdrawal of materials deemed inaccurate, misleading, or in conflict with university policies.

SECTION 8. SAFETY & INSURANCE

8.1 Workplace Health & Safety: Both parties must comply with applicable WHS legislation. Hirers must follow all safety instructions provided by UNSW staff.

8.2 Liability & Indemnity: The Hirer agrees to hold UNSW Founders indemnified against third-party claims, personal injury, or property loss arising directly from the Hirer's negligence or event activities.

8.3 Property Insurance: UNSW Founders is not responsible for loss, theft, or damage to personal or external contractor property brought into the venue.

SECTION 9. TERMINATION

9.1 Termination for Breach: UNSW Founders may terminate this Agreement immediately if the Hirer breaches terms, fails to settle invoices, or experiences insolvency/administration.

9.2 No Claim Clause: Upon termination, cancellation, or scheduling variation of this Agreement, the Hirer's sole remedy against UNSW Founders is limited to a refund of hire fees paid (where applicable). The Hirer holds no right or legal claim against UNSW Founders for indirect damages, lost commercial revenue, marketing expenses, or consequential losses.